

THE CONSTITUTION (FIFTEENTH
AMENDMENT) BILL, 1962

(AS INTRODUCED IN LOK SABHA
ON ~~21st~~ NOVEMBER, 1962)
23rd

THE CONSTITUTION (FIFTEENTH AMENDMENT)
BILL, 1962

(AS INTRODUCED IN LOK SABHA)

A

BILL

further to amend the Constitution of India.

BE it enacted by Parliament in the Thirteenth Year of the Republic of India as follows:—

1. This Act may be called the Constitution (Fifteenth Amendment) Act, 1962. Short title.

5 2. In article 124 of the Constitution, after clause (2), the following clause shall be inserted, namely:— Amendment
of article
124.

“(2A) If any question arises as to the age of a Judge of the Supreme Court, the question shall be decided by the President after making such inquiry as he may deem necessary and his decision shall be final.”.

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3. In article 128 of the Constitution, after the words “Federal Court”, the words “or who has held the office of a Judge of a High Court and is duly qualified for appointment as a Judge of the Supreme Court” shall be inserted. Amendment
of article
128.

15 4. In article 217 of the Constitution,—

“(a) in clause (1), for the words “sixty years”, the words “sixty-two years” shall be substituted; Amendment
of article
217.

(b) after clause (2), the following clause shall be inserted and shall be deemed always to have been inserted, namely:—

20 “(3) If any question arises as to the age of a Judge of a High Court, the question shall be decided by the President

2094 (B) LS—1.

after making such inquiry as he may deem necessary and his decision shall be final.”.

Amendment of article 220. 5. In article 220 of the Constitution, the following proviso shall be inserted before the *Explanation*, namely:—

“Provided that where a Judge is transferred from one High Court to another High Court and he serves as a Judge of that High Court for a period of not less than five years immediately before retirement, he shall be entitled, on retirement, to plead or act in the Supreme Court and all the High Courts except the High Court to which he was so transferred.”. 10

Amendment of article 222. 6. In article 222 of the Constitution, after clause (1), the following clause shall be inserted, namely:—

“(2) When a Judge is so transferred, he shall, during the period he serves as a Judge of the other High Court, be entitled to receive in addition to his salary such compensatory allowance as may be determined by Parliament by law and, until so determined, such compensatory allowance as the President may by order fix.”. 15

Amendment of article 224. 7. In article 224 of the Constitution, in clause (3), for the words “sixty years”, the words “sixty-two years” shall be substituted. 20

Insertion of new article 224A. 8. After article 224 of the Constitution, the following article shall be inserted, namely:—

Appoint-
ment of
retired
Judges at
sittings
of High
Courts.

“224A. Notwithstanding anything in this Chapter, the Chief Justice of a High Court for any State may at any time, with the previous consent of the President, request any person who has held the office of a Judge of that Court or of any other High Court to sit and act as a Judge of the High Court for that State, and every such person so requested shall, while so sitting and acting, be entitled to such allowances as the President may by order determine and have all the jurisdiction, powers and privileges of, but shall not otherwise be deemed to be, a Judge of that High Court: 25 30

Provided that nothing in this article shall be deemed to require any such person as aforesaid to sit and act as a Judge of that High Court unless he consents so to do.”. 35

Amendment of Article 226. 9. In article 226 of the Constitution,—
(a) after clause (1), the following clause shall be inserted, namely:—

“(1A) The power conferred by clause (1) to issue

5 directions, orders or writs to any Government, authority or person may also be exercised by any High Court exercising jurisdiction in relation to the territories within which the cause of action for the exercise of such power arises, notwithstanding that the seat of such Government or authority or the residence of such person is not within those territories.”;

10 (b) in clause (2), for the word, brackets and figure “clause (1)”, the words, brackets, figures and letter “clause (1) or clause (1A)” shall be substituted.

10. In article 276 of the Constitution, in clause (2), for the words “two hundred and fifty rupees”, wherever they occur, the words “five hundred rupees” shall be substituted. Amendment of article 276.

15 11. In article 297 of the Constitution, after the words “territorial waters”, the words “or the continental shelf” shall be inserted. Amendment of article 297.

12. In article 311 of the Constitution, for clauses (2) and (3), the following clauses shall be substituted, namely:— Amendment of article 311.

20 “(2) No such person as aforesaid shall be dismissed or removed except after an inquiry in which he has been informed of the charges against him and given a reasonable opportunity of being heard in respect of those charges:

Provided that this clause shall not apply—

25 (a) where a person is dismissed or removed on the ground of conduct which has led to his conviction on a criminal charge; or

(b) where the authority empowered to dismiss or remove a person is satisfied that for some reason, to be recorded by that authority in writing, it is not reasonably practicable to hold such inquiry; or

30 (c) where the President or the Governor, as the case may be, is satisfied that in the interest of the security of the State it is not expedient to hold such inquiry.

35 (3) If, in respect of any such person as aforesaid, a question arises whether it is reasonably practicable to hold such inquiry as is referred to in clause (2), the decision thereon of the authority empowered to dismiss or remove such person shall be final.”.

**Amendment
of article
316.**

13. In article 316 of the Constitution, after clause (1), the following clause shall be inserted, namely:—

“(1A) If the office of the Chairman of the Commission becomes vacant or if any such Chairman is by reason of absence or for any other reason unable to perform the duties of his office, 5 those duties shall, until some person appointed under clause (1) to the vacant office has entered on the duties thereof or, as the case may be, until the Chairman has resumed his duties, be performed by such one of the other members of the Commission as the President, in the case of the Union Commission or a Joint 10 Commission, and the Governor of the State in the case of a State Commission, may appoint for the purpose.”.

**Amendment
of the
Seventh
Schedule.**

14. In the Seventh Schedule to the Constitution, in List I, in entry 78, after the word “organisation”, the brackets and words “(including vacations)” shall be inserted and shall be deemed always 15 to have been inserted.

STATEMENT OF OBJECTS AND REASONS

Several amendments to the Constitution have been under consideration for a long time. The Constitution (Fifth Amendment) Bill was introduced in Lok Sabha in November, 1955, to give effect to some of them. For various reasons, the Bill could not be proceeded with, and it was allowed to lapse except the one relating to the amendment of article 3 of the Constitution. This article was amended separately by the Constitution (Fifth Amendment) Act, 1955. The present Bill contains some of the proposals included in the Constitution (Fifth Amendment) Bill and, in addition, there are a few more proposals for amendment of the Constitution. The proposals relating to articles 276, 297, 311 and 316 of the Constitution were contained in the Constitution (Fifth Amendment) Bill and they have been adopted with some minor modifications. The new proposals relate to articles 124, 128, 217, 220, 222 224A, 226 and entry 78 of the Union List.

2. It is proposed to amend article 217 so as to raise the age of retirement of High Court Judges from sixty years to sixty-two years. When any question arises to the correct age of a Judge of the Supreme Court or of a High Court, the question has to be decided by the President. It is proposed to make the position clear by making a specific provision in articles 124 and 217. It is considered desirable in the public interest that Judges should be transferred from one High Court to another. Such transfer is expected to impose additional financial burden on the Judge who is so transferred. It is, therefore, proposed to pay him some compensatory allowance in addition to his salary. When a Judge is transferred from one High Court to another, he cannot, in view of the provisions of article 220, resume practice in any of the High Courts in which he has held office as a Judge. The provisions of article 220 therefore put a check on the proposal for the transfer of any Judge of a High Court. It is, therefore, proposed to amend article 220 so that the restriction regarding resumption of practice should apply only to the High Court from which the Judge retires, provided that he had served in that High Court for a period of at least five years immediately before retirement. Such a provision would facilitate the transfer of Judges. Under the existing article 226 of the Constitution, the only High Court which has jurisdiction with respect to the Central Government is the Punjab High Court. This involves considerable hardship to litigants from distant

places. It is, therefore, proposed to amend article 226 so that when any relief is sought against any Government, authority or person for any action taken, the High Court within whose jurisdiction the cause of action arises may also have jurisdiction to issue appropriate directions, orders or writs. The other new proposals are of a minor character.

3. The notes on clauses appended to the Bill explain the provisions thereof.

NEW DELHI;

A. K. SEN.

The 14th November, 1962.

Notes on clauses

Clause 2.—Under clause (2) of article 124, a Judge of the Supreme Court holds office until he attains the age of 65 years. When, however, any question arises as to the correct age of a Judge, it has to be decided by the President. It is considered desirable to have a specific provision to make the position clear. This clause seeks to achieve this object.

Clause 3.—Cases have arisen when, due to the absence of a Judge or Judges of the Supreme Court for any reason, it has become necessary to require the attendance of a retired Judge of the Supreme Court at the sittings of the Court. The number of retired Supreme Court Judges being small, and in view of the age of retirement provided for Supreme Court Judges, this field cannot be expected to be wide at any time. It is, therefore, necessary to suitably amend article 128 so as to enable the Chief Justice of India, with the previous consent of the President, to require the attendance of a retired Judge of a High Court, who is duly qualified for appointment as a Judge of the Supreme Court, at the sittings of the Supreme Court. This clause seeks to amend article 128 for achieving the above mentioned object.

Clause 4.—Under article 217, a Judge of a High Court is entitled to hold office until he attains the age of 60 years. The Law Commission in their Fourteenth Report had recommended that the retiring age be raised to sixty-five years. It was felt that the retiring age should be raised to sixty-two years. It is proposed to amend clause (1) of article 217 to raise the retiring age from 60 to 62 years.

It is also proposed to insert a new clause (3) in article 217 to make a specific provision enabling the President to determine the age of a Judge of a High Court. In some cases, decision has already been taken by Government determining the age of a Judge. It is, therefore, proposed to give retrospective effect to this clause.

Clause 5.—If a permanent Judge of a High Court is transferred to one or more High Courts, he cannot, in view of the provisions of article 220, resume practice after retirement in any of the High Courts in which he had held office as a Judge. The provisions of article 220, therefore, put a check on the proposal for the transfer of any Judge of a High Court. It is considered that a provision should

be made to the effect that when a Judge is transferred from one High Court to another, the restriction regarding resumption of practice, after retirement, should apply only to the High Court from which the Judge retires, provided that the Judge had served in the High Court for a period of at least five years immediately before retirement. Such a provision would facilitate the transfer of Judges of the High Courts. This clause seeks to achieve this object.

Clause 6.—The transfer of a Judge from one High Court to another is expected to impose additional financial burden on the Judge who is transferred. Hence it is proposed to pay to the Judge some compensatory allowance in addition to his salary. It is proposed that such compensatory allowance may be fixed by Parliament by law and until so determined, it may be fixed by an order of the President. This clause seeks to amend article 222 for the purpose.

Clause 7.—This clause amends article 224 on the lines proposed in respect of clause (1) of article 217.

Clause 8.—This clause seeks to insert a new article, namely, article 224A, which would enable the Chief Justices of the State High Courts, with the previous consent of the President, to require the attendance of retired High Court Judges at the sittings of the High Courts.

Clause 9.—The recent decision of the Supreme Court, reported in A.I.R. (1961) S.C. 532, has established beyond doubt that as the seat of the Government of India is in New Delhi, the only High Court which will have jurisdiction under article 226 with respect to the Central Government would be the Punjab High Court. This would involve hardship to litigants from distant places. It is, therefore, necessary to amend article 226 so that the High Court within whose jurisdiction the cause of action arises may also have jurisdiction to issue directions, orders or writs to any Government, authority for person, notwithstanding that the seat of such Government or authority or the residence of such person is outside the territorial jurisdiction of the High Court.

Clause 10.—The ceiling of Rs. 250/- fixed by clause (2) of article 276 as the maximum leviable by way of taxes by local authorities on professions, trades, callings and employments in respect of any person is considered to be too low. It is, therefore, proposed to raise the limit to Rs. 500/-.

Clause 11.—India's sovereign rights under International Law over the sea-bed and sub-soil of the continental shelf adjoining its territory and beyond its territorial waters have already been asserted

in a President's proclamation. As a corollary to that proclamation, article 297 is sought to be amended suitably by this clause.

Clause 12.—Article 311 is being amended so as—

(a) to make it clear that only one opportunity should be given to a Government servant in respect of any departmental enquiry against him; and

(b) to ensure that reduction in rank does not stand on a par with the more severe punishments of dismissal or removal from service and thus get a constitutional safeguard.

Clause 13.—There is no provision in article 316 for the appointment of an acting Chairman of a Public Service Commission when that office is vacant or when the permanent Chairman is on leave or is otherwise unable to perform the duties of his office. It is accordingly proposed to amend article 316 to provide for such appointment.

Clause 14.—A special Bench of the Calcutta High Court made an observation in the case reported in 65 C.W.N. 920, to the effect that the expression “organisation” occurring in entry 78 of List I of the Seventh Schedule to the Constitution does not include “vacations”. The present clause seeks to amend the said entry with a view to make it clear that the expression “organisation” occurring therein includes “vacations”. It is proposed to give retrospective effect to the proposed amendment.

FINANCIAL MEMORANDUM

Clause 3 of the Bill provides for the appointment of a retired Judge of a High Court to sit and act as a Judge of the Supreme Court. This only enlarges the field of appointment of Judges already existing under Article 128 of the Constitution and does not involve any additional expenditure.

2. Clause 4 of the Bill provides for the raising of the age of retirement of a High Court Judge from 60 to 62 years. Clause 7 similarly provides that an Additional Judge can continue to hold office up to the age of 62. This would result in increased pensions in certain cases. The pensions payable to the Judges are first charged on the Consolidated Fund of India under Article 112(3) (d) of the Constitution, but these amounts are subsequently recovered from the States concerned under Article 290 of the Constitution.

3. Clause 6 of the Bill provides for the payment of compensatory allowance to a Judge on his transfer from one High Court to another. The additional expenditure on this account will depend on the number of Judges transferred and the exact allowances fixed. It is not possible to give an accurate estimate of the amount of extra expenditure involved. This addition, however, would not be on the Consolidated Fund of India but on the Consolidated Fund of the States concerned.

4. Clause 8 of the Bill provides for the appointment of a retired High Court Judge to sit and act as a Judge of a High Court. Some additional expenditure will be involved when such an appointment is made, and it will be a charge on the Consolidated Fund of the State concerned.

5. It will thus appear that ultimately no additional expenditure from the Consolidated Fund of India would be involved.

ANNEXURE

EXTRACTS FROM THE CONSTITUTION OF INDIA

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PART V

THE UNION

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CHAPTER IV.—THE UNION JUDICIARY

Establish-
ment and
Constitution
of Supreme
Court.

124. (1) There shall be a Supreme Court of India consisting of a Chief Justice of India and, until Parliament by law prescribes a larger number, of not more than seven other Judges.

(2) Every Judge of the Supreme Court shall be appointed by the President by warrant under his hand and seal after consultation with such of the Judges of the Supreme Court and of the High Courts in the States as the President may deem necessary for the purpose and shall hold office until he attains the age of sixty-five years:

Provided that in the case of appointment of a Judge other than the Chief Justice, the Chief Justice of India shall always be consulted:

Provided further that—

(a) A Judge may, by writing under his hand addressed to the President, resign his office;

(b) a Judge may be removed from his office in the manner provided in clause (4).

(3) A person shall not be qualified for appointment as a Judge of the Supreme Court unless he is a citizen of India and—

(a) has been for at least five years a Judge of a High Court or of two or more such Courts in succession; or

(b) has been for at least ten years an advocate of a High Court or of two or more such Courts in succession; or

(c) is, in the opinion of the President, a distinguished jurist.

Explanation I.—In this clause “High Court” means a High Court which exercises, or which at any time before the commencement of

this Constitution exercised, jurisdiction in any part of the territory of India.

Explanation II.—In computing for the purpose of this clause the period during which a person has been an advocate, any period during which a person has held judicial office not inferior to that of a district judge after he became an advocate shall be included.

(4) A Judge of the Supreme Court shall not be removed from his office except by an order of the President passed after an address by each House of Parliament supported by a majority of the total membership of that House and by a majority of not less than two-thirds of the members of that House present and voting has been presented to the President in the same session for such removal on the ground of proved misbehaviour or incapacity.

(5) Parliament may by law regulate the procedure for the presentation of an address and for the investigation and proof of the misbehaviour or incapacity of a Judge under clause (4).

(6) Every person appointed to be a Judge of the Supreme Court shall, before he enters upon his office, make and subscribe before the President, or some person appointed in that behalf by him, an oath or affirmation according to the form set out for the purpose in the Third Schedule.

(7) No person who has held office as a Judge of the Supreme Court shall plead or act in any court or before any authority within the territory of India.

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128. Notwithstanding anything in this Chapter, the Chief Justice of India may at any time, with the previous consent of the President, request any person who has held the office of a Judge of the Supreme Court or of the Federal Court to sit and act as a Judge of the Supreme Court, and every such person so requested shall, while so sitting and acting, be entitled to such allowances as the President may by order determine and have all the jurisdiction, powers and privileges of, but shall not otherwise be deemed to be, a Judge of that Court:

Attendance
of retired
Judges at
sittings
of the
Supreme
Court.

Provided that nothing in this article shall be deemed to require any such person as aforesaid to sit and act as a Judge of that Court unless he consents so to do.

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PART VI
THE STATES

CHAPTER V.—THE HIGH COURTS IN THE STATES

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Appoint-
ment and
conditions
of the office
of a Judge of
a High
Court.

217. (1) Every Judge of a High Court shall be appointed by the President by warrant under his hand and seal after consultation with the Chief Justice of India, the Governor of the State, and, in the case of appointment of a Judge other than the Chief Justice, the Chief Justice of the High Court, and shall hold office, in the case of an additional or acting Judge, as provided in article 224, and in any other case, until he attains the age of sixty years;

Provided that—

(a) a Judge may, by writing under his hand addressed to the President, resign his office;

(b) a Judge may be removed from his office by the President in the manner provided in clause (4) of article 124 for the removal of a Judge of the Supreme Court;

(c) the office of a Judge shall be vacated by his being appointed by the President to be a Judge of the Supreme Court or by his being transferred by the President to any other High Court within the territory of India.

(2) A person shall not be qualified for appointment as a judge of a High Court unless he is a citizen of India and—

(a) has for at least ten years held a Judicial office in the territory of India; or

(b) has for at least ten years been an advocate of a High Court or of two or more such Courts in succession.

Explanation.—For the purposes of this clause—

(a) in computing the period during which a person has been an advocate of a High Court, there shall be included any period during which the person has held judicial office after he became an advocate;

(b) in computing the period during which a person has held judicial office in the territory of India or been an advocate of a High Court, there shall be included any period before the commencement of this Constitution during which he has held judicial office in any area which was comprised before the fifteenth

day of August, 1947, within India as defined by the Government of India Act, 1935, or has been an advocate of any High Court in any such area, as the case may be.

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220. No person who, after the commencement of this Constitution, has held office as a permanent Judge of a High Court shall plead or act in any court or before any authority in India except the Supreme Court and the other High Courts. Restriction on practice after being a permanent Judge.

Explanation.— In this article, the expression “High Court” does not include a High Court for a State specified in Part B of the First Schedule as it existed before the commencement of the Constitution (Seventh Amendment) Act, 1956.

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222. (1) The President may, after consultation with the Chief Justice of India, transfer a Judge from one High Court to any other High Court. Transfer of a Judge from one High Court to another.

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224. (1) If by reason of any temporary increase in the business of a High Court or by reason of arrears of work therein, it appears to the President that the number of the Judges of that Court should be for the time being increased, the President may appoint duly qualified persons to be additional Judges of the Court for such period not exceeding two years as he may specify. Appointment of additional and acting Judges.

(2) When any Judge of a High Court other than Chief Justice is by reason of absence or for any other reason unable to perform the duties of his office or is appointed to act temporarily as Chief Justice, the President may appoint a duly qualified person to act as a Judge of that Court until the permanent Judge has resumed his duties.

(3) No person appointed as an additional or acting Judge of a High Court shall hold office after attaining the age of sixty years.

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226. (1) Notwithstanding anything in article 32, every High Court shall have power, throughout the territories in relation to which it exercises jurisdiction, to issue to any person or authority, including in appropriate cases any Government, within those territories directions, orders or writs, including writs in the nature of *habeas corpus*, *mandamus*, prohibition, *quo warranto* and *certiorari*, or any of them, for the enforcement of any of the rights conferred by Part III and for any other purpose. Power of High Courts to issue certain writs.

(2) The power conferred on a High Court by clause (1) shall not be in derogation of the power conferred on the Supreme Court by clause (2) of article 32.

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PART XII

FINANCE, PROPERTY, CONTRACTS AND SUITS

CHAPTER I.—FINANCE

General

* * * * *

Taxes on
professions,
trades, call-
ings and
employ-
ments.

276. (1) Notwithstanding anything in article 246, no law of the Legislature of a State relating to taxes for the benefit of the State or of a municipality, district board, local board or other local authority therein in respect of professions, trades, callings or employment shall be invalid on the ground that it relates to a tax on income.

(2) The total amount payable in respect of any one person to the State or to any one municipality, district board, local board or other local authority in the State by way of taxes on professions, trades, calling and employments shall not exceed two hundred and fifty rupees per annum:

Provided that if in the financial year immediately preceding the commencement of this Constitution there was in force in the case of any State or any such municipality, board or authority a tax on professions, trades, callings or employments the rate, or the maximum rate, of which exceeded two hundred and fifty rupees per annum, such tax may continue to be levied until provision to the contrary is made by Parliament by law, and any law so made by Parliament may be made either generally or in relation to any specified States, municipalities, boards or authorities.

(3) The power of the Legislature of a State to make laws as aforesaid with respect to taxes on professions, trades, callings and employments shall not be construed as limiting in any way the power of Parliament to make laws with respect to taxes on income accruing from or arising out of professions, trades, callings and employments.

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CHAPTER III.—PROPERTY, CONTRACTS, RIGHTS, LIABILITIES, OBLIGATIONS AND SUITS

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Things of
value lying
within
territorial
waters to
vest in the
Union.

297. All lands, minerals and other things of value underlying the ocean within the territorial waters of India shall vest in the Union and be held for the purposes of the Union.

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PART XIV**SERVICES UNDER THE UNION AND THE STATES****CHAPTER I.—SERVICES**

311. (1) No person who is a member of a civil service of the Union or an all-India service or a civil service of a State or holds a civil post under the Union or a State shall be dismissed or removed by an authority subordinate to that by which he was appointed.

Dismissal, removal or reduction in rank of persons employed in civil capacities under the Union or a State.

(2) No such person as aforesaid shall be dismissed or removed or reduced in rank until he has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him:

Provided that this clause shall not apply—

(a) where a person is dismissed or removed or reduced in rank on the ground of conduct which has led to his conviction on a criminal charge;

(b) where an authority empowered to dismiss or remove a person or to reduce him in rank is satisfied that for some reason, to be recorded by that authority in writing, it is not reasonably practicable to give to that person an opportunity of showing cause; or

(c) where the President or Governor, as the case may be, is satisfied that in the interest of the security of the State it is not expedient to give to that person such an opportunity.

(3) If any question arises whether it is reasonably practicable to give to any person an opportunity of showing cause under clause (2) the decision thereon of the authority empowered to dismiss or remove such person or to reduce him in rank, as the case may be, shall be final.

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CHAPTER II.—PUBLIC SERVICE COMMISSIONS

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316. (1) The Chairman and other members of a Public Service Commission shall be appointed, in the case of the Union Commission or a Joint Commission, by the President, and in the case of a State Commission, by the Governor of the State:

Appointment and term of office of members.

Provided that as nearly as may be one-half of the members of every Public Service Commission shall be persons who at the dates of their respective appointments have held office for at least ten years either under the Government of India or under the Government of a

State, and in computing the said period of ten years any period before the commencement of this Constitution during which a person has held office under the Crown in India or under the Government of an Indian State shall be included.

(2) A member of a Public Service Commission shall hold office for a term of six years from the date on which he enters upon his office or until he attains, in the case of the Union Commission, the age of sixty-five years, and in the case of a State Commission or a Joint Commission, the age of sixty years, whichever is earlier:

Provided that—

(a) a member of a Public Service Commission may, by writing under his hand addressed, in the case of the Union Commission or a Joint Commission, to the President, and in the case of a State Commission, to the Governor of the State, resign his office;

(b) a member of a Public Service Commission may be removed from his office in the manner provided in clause (1) or clause (3) of article 317.

(3) A person who holds office as a member of a Public Service Commission shall, on the expiration of his term of office, be ineligible for re-appointment to that office.

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SEVENTH SCHEDULE

[Article 246]

List I—Union List

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78. Constitution and organisation of the High Courts except provisions as to officers and servants of High Courts; persons entitled to practise before the High Courts.

* * * *

A
BILL
further to amend the Constitution of India.

The President has, in pursuance of clauses (1) and (3) of article 117 of the Constitution of India, recommended to Lok Sabha the introduction and consideration of the Bill.

M. N. KAUL,
Secretary.

(*Shri Asoke K. Sen,*
Minister of Law.)